THE JAPANESE CHAMBER OF COMMERCE & INDUSTRY

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No.: 10/2019JCCI

Ref: ***Opinions about the Draft Law on Militia & self-defense (amending)***

THE SOCIALIST REPUBLIC OF VIETNAM

Independence – Freedom – Happiness

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Hanoi, 1st Oct, 2019

To:
- **The Committee of National Defense & Security of National Assembly**
- **The Standing Committee of National Assembly**
- **The Ministry of National Defense**
- **The Government Office**

Firstly, we - the Japanese Chamber of Commerce & Industry in Vietnam (JCCI) would like send our respectful greetings & deep thanks to you for the cooperation & support our activities during the past time.

Regarding to the Draft Law on Militia & self-defense (amending), we would like to give urgent proposal for the provision on the subjects of application of the Draft Law as follows:

Under the provision of the Draft Law, all enterprises, including FDI enterprises shall be the subjects of application. However, as the representative of Japanese enterprises investing and operating in Vietnam, JCCI find that FDI enterprises are not suitable to be the subjects of application of this Law. Because:

1. According to the Draft Law, the militia and self-defense force is "the protection force of the Party, the State, the lives and properties of the People, the properties of local agencies and organizations and grassroots organizations; play a key role with the entire people to fight against the enemy in localities and grassroots levels when there is a war". Thus, the purpose of building a militia force is to prepare for protecting the country in the event of a war. However, FDI enterprises are enterprises with 100% foreign capital, managed by foreigners. They only come to Vietnam to do business, if they participate in the activities of defending the country of Vietnam, it also means, they are violating the laws of their countries interfering in the security and defense issues of other countries.

2. In the event of a war, foreigners will also return their countries, so there will be no leader of the self-defense force. Enterprises also cannot assign Vietnamese to lead the force

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instead because there is no cost to do it.

3. The job of an enterprise is only production and business. Only the management and operation of enterprise is extremely complicated. If the organization of the self-defense force is added, it will be extremely complicated for the enterprise to implement and manage this force.

4. In addition, with the current difficult recruitment situation, enterprises are always in the shortage of manpower for production, so they must organize work overtime, even exceed the maximum OT hours in a year in order to meet customers' needs. Therefore, enterprises do not have manpower and cannot arrange laborers to join the force as well as laborers to organize and manage this force.

5. And even if it is possible to arrange manpower, the costs related to the militia and self-defense activities (expenses for organization of self-defense, expenses for costumes, hats, badges, salaries and allowances, insurance, meals, business allowances, travel expenses, ... for the force) will create a lot of burden for enterprises while the enterprises themselves have a lot of other burdens.

With the reasons mentioned above, **JCCI urgently proposes that the Authorities do not apply this Draft Law to FDI enterprises** in order to comply with International Law and actual situation in enterprises, then, FDI enterprises can be able to stably produce and contribute more to the development of Vietnam.

Finally, JCCI will make effort to become the connection for the soci-economic development of Vietnam as well as Japanese enterprise's development. JCCI will always represent for Japanese enterprises in Vietnam, collect the opinions of enterprise member and give proposal to contribute more to the development of Vietnam. Therefore, we look forward to continuously receive the support from the Government and other Agencies.

Thank you very much!

Receiver:

- *As above*
- *Ministry of Investment and Planning – Bureau of Foreign Investment*
- *Embassy of Japan in Vietnam*
- *JCCI in Ho Chi Minh city*
- *JCCI in Da Nang*

On behalf of the Japanese Chamber of Commerce and Industry in Vietnam

General Secretary

HATTA JONOSUKE